

HOUSE BILL No. 1077

DIGEST OF INTRODUCED BILL

Citations Affected: IC 14-8-2; IC 14-15.

Synopsis: Boating issues. Requires a person towed by a motorboat to wear a personal flotation device. Provides that a person operating a boat on an inland lake shall operate the vessel in a counter-clockwise fashion. Establishes that a person operating a boat between sunset and sunrise may not tow anything other than a distressed boat. Requires a person on a boat to use a red or orange safety flag when a person being towed enters the water.

Effective: July 1, 2026.

Heine, Abbott

January 5, 2026, read first time and referred to Committee on Natural Resources.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1077

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 14-8-2-131.9 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 131.9. (a) "Inland lake", for**
4 **purposes of IC 14-15-3, means a reasonably permanent body of**
5 **water that:**

- 6 **(1) is naturally occurring or human made;**
7 **(2) is substantially at rest in a depression in the surface of the**
8 **earth;**
9 **(3) covers an area of at least five (5) acres within the shoreline**
10 **and water line, including bays and coves; and**
11 **(4) is entirely surrounded by land.**

12 **(b) The term does not include Lake Michigan.**

13 SECTION 2. IC 14-8-2-307.5 IS ADDED TO THE INDIANA
14 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
15 [EFFECTIVE JULY 1, 2026]: **Sec. 307.5. "Water recreation flag"**
16 **for purposes of IC 14-15-3, means a flag that:**

- 17 **(1) is at least twelve (12) inches wide by twelve (12) inches**



high;

(2) is square or rectangular, approximately four (4) units high by five (5) units long;

(3) is a bright orange or red color; and

(4) is mounted on a handle and displayed as to be visible from all directions.

SECTION 3. IC 14-15-2-6, AS AMENDED BY P.L.111-2016, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) This section does not apply to the following:

(1) A sailboard or windsurfing board.

(2) A manually propelled boat, such as a racing shell, rowing scull, or racing kayak:

(A) that is recognized by national or international racing associations for use in competitive racing;

(B) in which all occupants row, scull, or paddle, with the exception of a coxswain if a coxswain is provided; and

(C) that is designed to carry and carries equipment only for competitive racing.

(b) All boats must be equipped with the number and type of personal flotation devices listed in this subsection. A person may not operate a boat unless the boat contains:

(1) for each person on board, one (1) personal flotation device that meets the requirements for designation by the United States Coast Guard as a wearable personal flotation device; and

(2) for a boat, except a canoe or kayak, at least sixteen (16) feet in length and in addition to the requirements of subdivision (1), one (1) personal flotation device that meets the requirements for designation by the United States Coast Guard as a throwable personal flotation device.

(c) A person towed by a motorboat shall wear a personal flotation device.

~~(c)~~ **(d)** The director may waive the requirements of this section for a boat during competition in a boat race for which a permit has been issued by the department if the following conditions are met:

(1) The sponsor of the boat race has informed the director of the precautions the sponsor will take to minimize the safety hazards that exist due to noncompliance with the requirements of this section.

(2) The sponsor files with the director a document under which the sponsor assumes all liability that may result from the use of a boat under the waiver.

SECTION 4. IC 14-15-3-8.5 IS ADDED TO THE INDIANA CODE



AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8.5. A person operating a boat on an inland lake shall operate the vessel in a counter-clockwise fashion to the extent that it is reasonably possible.**

SECTION 5. IC 14-15-3-20 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20. **(a)** A person operating a motorboat may not tow a water ski, a watersled, an aquaplane, or a similar object, including a person on the waterski, watersled, aquaplane, or similar object, unless:

(1) the motorboat is occupied by at least one (1) other person who is giving the person's entire attention to watching the object or person towed; and

(2) the person operating the boat is giving the person's entire attention to the operation of the boat.

(b) Except as provided in subsection (c), a person operating a motorboat may not tow any object or person between sunset and sunrise.

(c) A person operating a motorboat may tow a distressed boat between sunset and sunrise.

SECTION 6. IC 14-15-3-20.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 20.5. A person in a motorboat shall observe the person towed by the boat and display a water recreation flag immediately after the towed person:**

(1) enters into the water; and

(2) during the time preparatory to:

(A) towing; or

(B) retrieving;

the person in the water.

SECTION 7. IC 14-15-3-31, AS AMENDED BY P.L.195-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 31. (a) A person who violates section 2, 3, 5, 7, 8, **8.5**, 9, 10, 14, 15, 16, 17, 20, **20.5**, 22, 23, 24, 25, 26, 27, 28, 29, or 30 of this chapter commits a Class C infraction.

(b) A person who knowingly or intentionally violates section 6 of this chapter commits a Class C misdemeanor.

